



**Order under Section 87
Residential Tenancies Act, 2006**

Citation: SHOEMAKER v PARK-SAWYER, 2025 ONLTB 96791

Date: 2025-12-18

File Number: LTB-L-019977-25

In the matter of: unit 1, 76 WELLINGTON ST S WOODSTOCK ON N4S3H8

Between: ROBERT KENNITH EARLE SHOEMAKER Landlords
CHERYL ANN SHOEMAKER

And

BRITTANEY PARK-SAWYER Former Tenants
CHRISTOPHER SAWYER

ROBERT KENNITH EARLE SHOEMAKER and CHERYL ANN SHOEMAKER (the 'Landlords') applied for an order requiring BRITTANEY PARK-SAWYER and CHRISTOPHER SAWYER (the 'Former Tenants') to pay the rent and daily compensation that the Former Tenants owe.

This application was heard by videoconference on November 4, 2025.

Only the Landlords attended the hearing.

As of 9:50 am, the Former Tenants were not present or represented at the hearing although properly served with notice of this hearing by the Landlord. There was no record of a request to adjourn the hearing. As a result, the hearing proceeded with only the Landlord's evidence

Determinations:

1. As explained below, the Landlord proved the allegations contained in the application on a balance of probabilities. Therefore, the Former Tenants shall pay to the Landlord \$3,762.14.

2. I am satisfied that the Landlord served the Former Tenants with the application and Notice of Hearing at least 30 days before the hearing in accordance with Rule 3.3 of the LTB's Rules of Procedure.
3. These documents were served on October 3, 2025, by delivering the documents to the Former Tenants' new residence.
4. The Former Tenants vacated the rental unit on February 6, 2025.

Rent

5. The lawful rent was \$1,355.62. It was due on the 1st day of each month.
6. Based on the Monthly rent, the daily rent/compensation is \$44.57. This amount is calculated as follows: $\$1,355.62 \times 12$, divided by 365 days.
7. The Former Tenants have not made any payments since the application was filed.
8. The tenancy ended on February 28, 2025, as a result of the Former Tenants moving out in accordance with a notice of termination, LTB order or agreement to terminate the tenancy. Therefore, the Former Tenants' obligation to pay rent ended on that date.
9. The rent arrears and daily compensation owing to February 28, 2025, are \$4,866.86.

Costs, Last Month's Rent Deposit & Interest

10. The Landlord incurred costs of \$186.00 for filing the application and is entitled to reimbursement of those costs.
11. The Landlord collected a rent deposit of \$1,275.00 from the Former Tenants and this deposit is still being held by the Landlord. The amount of the rent deposit and interest on the rent deposit is applied to the amount the Former Tenants are required to pay.
12. Interest on the rent deposit, in the amount of \$15.72 is owing to the Former Tenants for the period from September 2, 2024, to February 28, 2025.

It is ordered that:

1. The Former Tenants shall pay to the Landlord \$4,666.86, which represents rent and compensation owing up to February 28, 2025.
2. The Former Tenants shall also pay to the Landlord \$186.00 for the cost of filing the application.
3. The Landlord owes \$1,290.72 which is the amount of the rent deposit and interest on the rent deposit, and this is deducted from the amount owing by the Former Tenants.

4. The total amount the Former Tenants owe the Landlord is \$*3,762.14. See Schedule 1 for the calculation of the amount owing.
5. If the Former Tenants do not pay the Landlord the full amount owing on or before December 29, 2025, the Former Tenants will start to owe interest. This will be simple interest calculated from December 30, 2025, at 4.00% annually on the balance outstanding.

December 18, 2025

Date Issued

Jagger Benham

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.

* Refer to the attached Summary of Calculations.

**Schedule 1 SUMMARY
OF CALCULATIONS**

Amount the Former Tenant must pay the Landlord:

Rent and Compensation Owing To February 28, 2025	\$4866.86
Application Filing Fee	\$186.00
Less the amount of the last month's rent deposit	- \$1,275.00
Less the amount of the interest on the last month's rent deposit	- \$15.72
Total amount owing to the Landlord	\$3,762.14